

Court No. - 3

Case :- WRIT - C No. - 19650 of 2011

Petitioner :- Mohd. Zubair

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Bhoopendra Nath Singh, Devendra Pratap Singh

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

Let it appear on 19.04.2011 in the list of supplementary fresh cases. In the meantime, learned counsel appearing for the respondents may seek instruction.

Order Date :- 5.4.2011

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According to the petitioner his electricity connection has been temporarily disconnected without affording him opportunity of hearing, therefore, applying the conditions of Clauses 4.66, 4.66.1 and 4.66.2 of Uttar Pradesh Electricity Supply Code-2002, we direct that in case the petitioner makes deposit of 50 % of the amount of Bill dated 29th January, 2011 (Annexure 1 to the writ petition) along with an application for redressal of his grievances before the authority concerned within a period of one month from the date of obtaining certified copy of this order, the authority concerned will take a decision preferably within a period of one month thereafter upon giving fullest opportunity of hearing and by passing a reasoned order thereon. However, if the petitioner succeeds upon consideration of the cause by the authority, his electricity connection will be reconnected within 72 hours from the date of decision. Accordingly, the writ petition is disposed of, however, without any order as to cost.

Order Date :- 25.4.2011

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